BY ORDER OF THE COMMANDER
45TH SPACE WING

45TH SPACE WING INSTRUCTION
31-213

21 APRIL 2021

Security

45TH SPACE WING ARMED FORCES DISCIPLINARY CONTROL BOARD

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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(Lt Col Timothy K. McCarty)

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This instruction supplements Air Force Joint Instruction (AFJI) 31-213, *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations*, and prescribes procedures for the establishment, operation, and coordination of the Armed Forces Disciplinary Control Board (AFDCB). This instruction applies to all military assigned to, on active duty orders, TDY to, or visiting in the jurisdictional area of the 45 SW. Military personnel who violate the specific prohibitions and requirements of this instruction may be prosecuted under Article 92 of the Uniform Code of Military Justice (UCMJ), or any other applicable article of the UCMJ, as appropriate. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Instruction 33-322, Records Management and Information Governance Program, and disposed of in accordance with the Air Force Records Disposition Schedule located in the AF Records Information Management System. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may not be supplemented or further implemented/extended. Submit requests for waivers through the chain of command to the Publication OPR.

SUMMARY OF CHANGES

This document has been substantially revised and needs to be completely reviewed. Major changes include: changes in the Board composition, updating Office Symbols, and deletion of guidance that is promulgated in AFJI 31-213.

1. Authority. The 45th Space Wing Commander (45 SW/CC) is responsible for maintaining the health, safety, welfare, morale, and discipline of 45 SW personnel and their families, as well as military members assigned to, or visiting within the jurisdictional area of the 45 SW. To carry out this responsibility, the 45 SW/CC, through the AFDCB President, is authorized to acquire, report, process, and store information concerning persons and organizations, whether or not affiliated with the DoD, which may adversely affect the health, safety, welfare, morale and discipline of the Armed Forces. This authority includes the establishment of off-limits areas, if deemed appropriate by the AFDCB pursuant to the procedures directed IAW AFJI 31-213. **NOTE:** This authority may be delegated to the 45 SW/CV, as determined by the 45 SW/CC.

2. Purpose. The purpose of the AFDCB is to assist the 45 SW/CC in eliminating undesirable conditions and situations that may adversely affect military members and their families. The goal of the AFDCB is correction of the deficiency by the off-base establishment, business, or area. However, when the deficiency is not or cannot be corrected, the AFDCB may recommend the 45 SW/CC place the establishment, business, or area "off-limits" to military personnel.

3. Board Composition. The Defense Force Commander is appointed as the AFDCB President and will perform duties IAW AFJI 31-213. The representatives from the following organizations are designated as voting members of the board, and are responsible for information or action within their area of responsibility:

3.1. 45SW/JA (Serves as the Legal Advisor to the AFDCB)

3.2. 45SW/PA (Public Affairs)

3.3. 45SW/EO (Equal Opportunity)

3.4. 45SW/HC (Chapel)

3.5. 45SW/SE (Safety)

3.6. 45SW/CVB (Community Support)

3.7. 45SW/CVI (Violence Prevention)

3.8. 45SW/CVS (Sexual Assault Response)

3.9. 45MDG/SGSX (Alcohol and Drug Abuse Prevention and Treatment

3.10. 45OMRS/SGXM (Public Health)

3.11. 45CES/CEF (Fire Prevention)

3.12. 45CES/CEIE (Environmental Conservation) **NOTE:** Board members, with the concurrence of the Board President, may invite other individuals or representatives of other organizations as witnesses or observers, if necessary or appropriate for the board proceedings.

4. Responsibilities of the Board.

4.1. The 45 SW AFDCB will meet quarterly and address all reports of conditions considered detrimental to the health, safety, welfare, morale and discipline of Armed Forces personnel and families.

4.2. Board members should be familiar with the duties and functions of the AFDCB, as established in AFJI 31-213.

4.3. The 45 AFDCB will follow the procedures guide in AFJI 31-213 regarding board meetings, areas for consideration, and actions to include the establishment of, and removal of off-limits restrictions, as appropriate.

5. Complaints.

5.1. Persons with knowledge of conditions that are, or may be detrimental to the good order and discipline, health, morale, welfare, safety, and morals of Armed Forces members and their families are encouraged to file a complaint through the chain of command or directly to the AFDCB President, using the sample complaint form in **Attachment 2**.

5.2. Complaints will be issued a case-specific identification number which identifies the wing, calendar year and incident number; e.g., 45 SW 2020-01, 45 SW 2020-02, etc.

STEPHEN G. PURDY, JR.
Brigadier General, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORT INFORMATION

References

AFJI 31-213, *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations*, 27 July 2006

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFDCB—Armed Forces Disciplinary Control Board

AFJI—Air Force Joint Instruction

AFMAN—Air Force Manual

AFRIMS—Air Force Records Information Management System

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule

UCMJ—Uniform Code of Military Justice

Attachment 2

AFDCB COMPLAINT

Figure A2.1. AFDCB Complaint.

FROM: _____
(Your Name/Rank

Address: _____

_____

Duty Phone:_____ Home Phone:_____

SUBJECT: Complaint

RE: (Name of Establishment)

TO: 45th Space Wing Armed Forces Disciplinary Control Board
45 SFS/CC
1319 Control Road
Patrick SFB FL 32925

1. Name, address, and phone number of the establishment, business, organization, club, etc., with which you have a complaint.

2. Type of complaint (racial discrimination, consumer, housing, etc.).

3. Date of incident(s).

4. Name(s) and position or title of the individual(s) representing the establishment.

5. Did you enter into a contract with the establishment? _____.

   If yes, on what date?_____. Please attach a legible photocopy of your contract to your complaint.

6. Significant facts (Use separate sheet if necessary).

7. What relief do you want from the establishment and/or what condition do you believe should be corrected?

Signature/Date:_____